QUICK SHEET · CONSTITUTION OF THE FEDERATED REPUBLIC

Rights & the Non-Derogable Floor

A floor no crisis can breach. Six rights that survive any emergency intact, a presumption that puts the burden on government, and a lifecycle designed so no emergency — however it's relabeled — quietly becomes permanent.

Article I · §1.2, §1.3–§1.4, §1.11, §1.13–§1.14, §1.19–§1.21

THE SIX ABSOLUTE RIGHTS — §1.19.A

§1.3
No Torture
Torture and cruel treatment, prohibited without exception.

§1.4
No Slavery
Slavery and forced labor, prohibited without exception.

§1.11
Habeas Corpus
The right to challenge detention before a court — never suspended.

§1.13
Public Trial
Public trial; only narrowly necessary closure for a compelling interest (§1.13).

§1.14
No Retroactive Punishment
No one is punished under a law written after the act.

§1.21
Non-Refoulement
No return of a person to persecution or torture.

No emergency declaration, executive order, or legislative act may derogate any of these — and **no emergency measure may discriminate** by race, ethnicity, religion, national origin, sexual orientation, or gender identity, whatever its stated purpose.

OFFICIAL CAPACITY PROTECTION — §7.7

Official Capacity Protection

Constitutional officers and persons acting within the authority of a constitutional office are protected from personal civil liability for lawful acts performed within their official authority. This protection does not extend to **criminal conduct**, acts outside official authority, or **violations of this Constitution**.

THE FLOOR BENEATH EVERYTHING — §1.2, §1.19

The Sovereignty Floor

Every person holds an **inviolable sphere** over their own life, body, and choices, within which government authority does not reach. Where the boundary is disputed, the presumption runs **in favor of liberty** — government carries the burden of proving it has constitutional authority to limit, not the person the burden of justifying freedom.

What an Emergency Cannot Do

No emergency suspends the Floor in full. The **three Monitors keep full authority** throughout — they cannot be suspended or reduced by declaration. Every derogation must name the emergency, the specific rights limited, the scope, and the duration; **blanket declarations are constitutionally invalid**, and every one is published to the NRS immediately.

WHY NO EMERGENCY BECOMES PERMANENT — §1.19

DEFAULT
Automatic Lapse
Emergency measures expire on their own at the declaration's end. Doing nothing ends the emergency.

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14 DAYS
Then Statute
An executive declaration lasts at most 14 days. Continuing it requires an ordinary statute with a fixed expiry date — which can never be extended or renewed.

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COOLDOWN
60-Day Bar
No re-declaration within 60 days — a new emergency covering substantially the same scope and rights is **barred no matter how it's relabeled**. After 60 days, re-declaration requires **2/3 of both chambers**.

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ALWAYS
Courts Stay Open
Every §1.19 derogation declaration receives independent review within 48 hours of publication. Review stays available throughout. A §2.11 continuity declaration has its separate expedited SC petition route.

NUMBERS WORTH REMEMBERING

6 rights are **absolute** — no emergency, order, or statute can touch them.

60 days — the re-declaration cooldown that blocks relabeled continuations, **not** an extension window; no Declaration is ever extended.

48 hours for **independent judicial review** of a §1.19 derogation declaration.

0 emergency measures can be made **permanent** without re-enactment through ordinary law.

A theoretical constitutional design project — not the law of any existing nation.